

		Respondents argue that any challenge to the legal framework that provides for affordable housing in the City of Yorba Linda may sow confusion and uncertainty. However, similar prejudicial arguments were made and rejected by the <i>New Commune</i> court: “We recognize the City expended significant time and energy preparing the housing element and responding to HCD findings. We also recognize the potential practical problems inherent in rezoning. But the Legislature has established minimum density requirements and cabined the discretion of local jurisdictions to prevent them from overriding those requirements. We decline the invitation to reconsider the wisdom or practicality of this approach.” (<i>New Commune</i>, 115 Cal. App. 5th at 137.) The court finds that Respondents’ claims of prejudice are speculative and not based on permitting Petitioner leave to amend, but rather a result of the change in the law that may affect the legality of the City’s Housing Element. Based on the foregoing, the court grants Petitioner’s Motion in light of the liberal policy for allowing amendments, because there is no prejudice to Respondents, and because the claims are not barred by either an applicable statute of limitations or the ripeness doctrine. Importantly, the court recognizes that its findings and determinations in this ruling are at an early stage of the proceedings and are made on compressed briefing. <u>These findings and determinations are made without prejudice to these issues being raised again at any later stage of the proceedings.</u> Petitioner is ordered to give notice of this ruling to Respondents.
11	30-2025-01499610 Sofferman vs. Orange County Global Medical Center, Inc., a California corporation	<u>I. Motion to Compel Arbitration</u> Defendant Orange County Global Medical Center, Inc.’s motion to compel arbitration is GRANTED. Plaintiff Trevin Sofferman is ordered to arbitrate his individual claims. The case is otherwise STAYED pending completion of the arbitration. An ADR Review Hearing is scheduled for March 17, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 16 days before the hearing and shall request a continuance if arbitration is not yet complete.

Formation of Agreement

The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. *Little v. Pullman* (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Id.*; *Perry v. Thomas* (1987) 482 U.S. 483, 492 n.9 (State law applicable to contracts generally governs whether a valid arbitration agreement exists.)

Here, the Dispute Resolution Agreement (the “Agreement”) is attached to the declaration of Candace Burchell, Human Resources Manager of two of the four subsidiary hospitals under parent entity and defendant KPC Healthcare, Inc. ROA 93. Burchell is the HR Manager for defendant Orange County Global Medical Center, Inc. (“OCGMC”) and a subsidiary hospital Anaheim Global Medical Center. *Id.* She retrieved plaintiff’s hand-signed 2019 arbitration agreement from his personnel file. *Id.* Ex. 1. This is sufficient to meet defendant’s initial burden that an agreement to arbitrate exists.

Plaintiff states he initially acknowledged the binding arbitration policy as part of an employee handbook in 2015. ROA 112. In 2019, plaintiff was provided a new employee handbook and told to sign the back page. *Id.* He understood the back page was a “legal agreement” and, as he was concerned, he did not sign it. *Id.* After his supervisor told him he was required to sign it, he did so. *Id.*

Plaintiff thus argues in opposition that no agreement formed because Ms. Burchnell lacks foundation to testify as to the circumstances of plaintiff’s execution of the Agreement. However, Ms. Burchell does not purport to do so. ROA 93. She retrieved the document from plaintiff’s personnel file and has familiarity and access because of her role as HR Manager. *Id.* Even if the Agreement was thus not authenticated as business record, which it was, plaintiff authenticated it, so any opposition on that basis lacks merit. ROA 112 ¶ 16 (“I have reviewed the document attached as Exhibit 1 to the Declaration of Candace Burchell in support of Defendant OCGMC’s Motion to Compel Arbitration and Stay Claims. I

		see the document is titled ‘Dispute Resolution Agreement.’ This is the same document that was on the back page of the New Employee Handbook that I reviewed and eventually signed in 2019.”). Plaintiff also argues the agreement is void for lack of mutual assent and/or fraud in the execution. Opp. at 7-8. However, plaintiff admits he looked at the Agreement and chose not to sign it initially because it was a “legal agreement.” ROA 112. He provides no evidence he was deceived about its contents or that he was prevented from reviewing it before signing it. In other words, plaintiff has provided no evidence supporting a lack of mutual assent or fraud. <i>See Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 423 (“If a party, with such reasonable opportunity, fails to learn the nature of the document he or she signs, such negligence precludes a finding the contract is void for fraud in the execution.”); <i>Randas v. YMCA of Metro. Los Angeles</i> (1993) 17 Cal.App.4th 158, 163 (“one who accepts or signs an instrument, which on its face is a contract, is deemed to assent to all its terms, and cannot escape liability on the ground that he has not read it.”). While defendant need not have done so as plaintiff’s authenticity challenge lacks merit, it has provided a declaration from OCGMC’s HR Manager from 2022-2023 and 2026-present to address plaintiff’s declaration. ROA 130. Arlene Nielsen states unequivocally that the Agreement was a standalone document and not part of the Employee Handbook in effect when plaintiff was hired. <i>Id.</i> The 2018 OCGMC handbook is attached to her declaration, and the last page is simply an acknowledgement without any mention of arbitration. <i>Id.</i> Ex. 2. Based on the evidence, the court finds an agreement to arbitrate was made. Applicability of the Federal Arbitration Act The Agreement states it is governed by the FAA. ROA 93 Ex. 1 ¶ 7. Defendant also provides evidence that its business involves interstate commerce and that it receives Medicaid payments. ROA 93 ¶ 7. Accordingly, the FAA applies, and plaintiff does not argue otherwise. <i>See Willis v. Prime Healthcare Services, Inc.</i> (2014) 231 Cal.App.4th 615, 626 (“Payments of Medicare or Medicaid funds are transactions involving commerce.”).
--	--	---

Relevant Terms and Whether the Agreement Covers the Dispute

The Agreement applies to “all disputes that might arise out of or be related in any way to [] employment by the Company.” ROA 93 Ex. 1 ¶ 1. The Company is defined as “Orange County Global Medical Center, Inc.” *Id.* The claims covered by the Agreement include those against the Company’s “parent, subsidiary, affiliated or client entities as well as against owners, directors, officers, managers, employees, agents, contractors, attorneys, benefit plan administrators, and insurers of the Company or of its parent, subsidiary, affiliated or client entities...[and] any person or entity I allege to be a joint employer with the Company.” *Id.* ¶ 3.

The Agreement further provides for a class and PAGA waiver. Employees “waive any substantive or procedural rights that [they] may have to bring or participate in an action brought on a class or collective basis. If under applicable law a representative claim under the California Private Attorneys General Act (‘PAGA’) is found to be unwaivable and such an action is pursued in court, I and the Company agree that any such PAGA claim will be severed and stayed pending resolution of claims that are arbitrable.” *Id.* ¶ 4.

Unconscionability

In *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, “‘generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening’ the FAA’ or California law.” *Id.* at 125; *accord AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.

To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243; *see also OTO, L.L.C., supra*, 8 Cal.5th at 129-30. “[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” *Armendariz, supra*,

24 Cal.4th at 114. Plaintiff bears the burden to demonstrate that the arbitration agreement is procedurally and substantively unconscionable. *Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 402.

Procedural Unconscionability

Defendant concedes the Agreement, as a condition of employment, is a contract of adhesion. Moreover, plaintiff contends that his supervisor told him he was required to sign the Agreement. However, while it is true virtually all “take it or leave it” contracts carry some degree of procedural unconscionability, that degree is not high absent evidence the defendant actively interfered with plaintiff’s ability to review and understand the arbitration clause. *See Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1145 (procedural unconscionability presumptively low absent evidence the defendant actively interfered with plaintiff’s ability to review and understand the arbitration clause).

Not only does plaintiff fail to provide evidence defendant prevented him from understanding the Agreement, plaintiff has testified he initially refused to sign the Agreement because it was a “legal agreement,” which demonstrates some level of comprehension. ROA 112. Furthermore, the Agreement is a standalone document and not overly long, technical, or complex. At any rate, it is immaterial whether the Agreement was explained, read, or understood. *Randas v. YMCA of Metro. Los Angeles* (1993) 17 Cal.App.4th 158, 163 (“one who accepts or signs an instrument, which on its face is a contract, is deemed to assent to all its terms, and cannot escape liability on the ground that he has not read it.”).

Accordingly, the evidence demonstrates a low to moderate amount of procedural unconscionability based on the adhesive nature of the Agreement.

Substantive Unconscionability

Substantive unconscionability examines the fairness of a contract’s terms to ensure that a contract of adhesion does not impose terms that are overly harsh, unduly oppressive, or unfairly one-sided. *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 129-30. The court focuses on terms that unreasonably favor the more powerful party, impair the integrity of the bargaining process, contravene public interest or policy, or attempt to

		impermissibly alter fundamental legal duties. This includes unreasonable or harsh terms or ones that undermine the non-drafting party’s reasonable expectations. <i>Id.</i> at 130. Plaintiff argues the agreement is substantively unconscionable based on its (1) overbroad scope, (2) lack of mutuality, and (3) indefinite duration. First, plaintiff cites language in <i>Cook v. Univ. of S. Cal.</i> (2024) 102 Cal.App.5th 312 regarding overbroad scope due to an express term that the claims subject to arbitration were unlimited. Opp. at 9 (“whether or not arising out of employment”). Plaintiff then concedes the Agreement does no such thing, but contends its application to third parties expands the scope to “virtually any claim.” Opp. at 10. This argument is unavailing. The Agreement covers “all disputes that might arise out of or be related in any way to my employment by the Company.” ROA 93 Ex. 1 ¶ 1. Additionally, above the signature line, in bold capitalized font, the Agreement reiterates its limited application, stating it applies to “ANY AND ALL DISPUTES THAT ARISE OUT OF MY EMPLOYMENT[.]” <i>Id.</i> at 3. The scope issue in <i>Cook</i> is thus not present here. Second, plaintiff argues lack of mutuality because, while he is required to arbitrate claims he may have against defendant and related third parties, related third parties are not required to arbitrate claims against plaintiff. Plaintiff again relies on <i>Cook v. University of Southern California</i> (2024) 102 Cal.App.5th 312. However, in <i>Cook</i>, the court found a lack of mutuality because the agreement at issue required plaintiff to give up the ability to ever bring claims in court against one of defendant’s employees even if they “are unrelated to USC or her employment there.” <i>Cook</i>, 102 Cal.App.5th at 327. Here, the Agreement contains no such language and, as explained above, it is expressly limited to the employment context. In a case involving a provision similar to the one at issue here, <i>Cook</i> was distinguished on the basis that such provisions providing for arbitration against third parties are not substantively unconscionable because if employer and employee are required to arbitrate all employment-related disputes between them, arbitration “applies equally to employee and employer initiated claims, carrying the modicum of bilaterality required by law.” <i>Ayala-Ventura v. Superior Ct.</i> (2026) 119 Cal. App. 5th 241, 259 (<i>review denied</i> June 17, 2026). For the same reason, the court finds <i>Cook</i> inapplicable here.
--	--	--

Third, plaintiff argues the arbitration agreement is substantively unconscionable because it is of indefinite duration. Plaintiff relies on a non-binding federal case, which relied on *Cook*. Opp. at 11. Again, reliance on *Cook* is misplaced because, unlike here, that agreement contained an express term providing for infinite duration. Specifically, in *Cook*, “[t]he arbitration agreement specifically provide[d] that it will survive unless and until Cook and USC’s president specifically terminate the agreement in a writing, signed by both parties, which expressly mentions the arbitration agreement.” *Cook*, 102 Cal.App.5th at 326. Here, plaintiff identifies no provision of the Agreement, let alone one that is reasonably interpreted to provide for indefinite duration. To the contrary, the Agreement provides the parties “must present any claim in arbitration before the statute of limitations expires for that type of claim.” ROA 93 Ex. 1 ¶ 5. Plaintiff provides no authority such a provision is substantively unconscionable in any respect. Moreover, even if this provision was not interpreted to effect finite duration, the default rule would apply, i.e., “arbitration agreements that do not specify a term of duration are terminable at will after a reasonable time has elapsed.” *Reigelsperger v. Siller* (2007) 40 Cal. 4th 574, 580.

Accordingly, because the court finds the Agreement is not substantively unconscionable, the agreement is enforceable without regard to the low to moderate amount of procedural unconscionability.

Stay

Per *Viking River*, the FAA allows a PAGA claim to be split into individual and representative portions, which the Agreement expressly provides. ROA 93 Ex. 1 ¶ 4 (“If under applicable law a representative claim under the California Private Attorneys General Act (‘PAGA’) is found to be unwaivable and such an action is pursued in court, I and the Company agree that any such PAGA claim will be severed and stayed pending resolution of claims that are arbitrable.”); *Viking River Cruises, Inc. v. Moriana* (2022) 142 S. Ct. 1906, 1919. Following *Viking River*, the California Supreme Court held “a plaintiff who files a PAGA action with individual and non-individual claims does not lose standing to litigate the non-individual claims in court simply because the individual claims have been ordered to arbitration.” *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal. 5th 1104, 1125. In such

	cases, the representative PAGA claim should be stayed and the individual PAGA claim should be ordered to arbitration. Both the FAA and California law provide for a stay of proceedings pending arbitration. 9 U.S.C. § 3; C.C.P. § 1281.4. This action is thus stayed pending the outcome of arbitration. <u>Evidentiary Objections</u> Plaintiff’s objections do not comply with the CRC, Rule 3.1354 (“[e]ach written objection must be numbered consecutively”) and are thus overruled. <u>II. Joinder of KPC Global Medical Centers, Inc. and KPC Healthcare Inc.</u> Defendants KPC Global Medical Centers, Inc. and KPC Healthcare, Inc.’s Joinder in defendant Orange County Global Medical Center, Inc.’s Motion to Compel Arbitration is GRANTED. Plaintiff Trevin Sofferman is ordered to arbitrate his individual claims. The case is otherwise STAYED pending completion of the arbitration. An ADR Review Hearing is scheduled for March 17, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 16 days before the hearing and shall request a continuance if arbitration is not yet complete. Procedural Issues It is common practice for attorneys to join in another party’s motion by simply filing a pleading captioned “joinder in motion of...”, stating that the joining party adopts the arguments and authorities contained in the joined motion. <i>Barak v. Quisenberry Law Firm</i> (2006) 135 Cal.App.4th 654, 661. Joinder is appropriate where the joinder seeks affirmative relief on behalf of the joining party and joins in the arguments made by the motion being joined. <i>Id.</i> Here, the joinder is appropriately in the form of a motion (ROA 103) and a memorandum that requests relief (ROA 77). Merits Plaintiff argues that joining defendants are precluded from enforcing the agreement because the arbitration agreement is
--	---

		unenforceable and moving parties may not enforce it as non-signatories and/or unnamed third parties. ROA 124. “Generally speaking, one must be a party to an arbitration agreement to be bound by it or invoke it.” <i>Molecular Analytical Systems v. CIPHERGEN Biosystems, Inc.</i> (2010) 186 Cal.App.4th 696, 706. However, there are exceptions to this general rule, which include: “(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary.” <i>Cohen v. TNP 2008 Participating Notes Program, LLC</i> (2019) 31 Cal.App.5th 840, 859. First, for the reasons explained in the court’s ruling on Orange County Global Medical Center, Inc.’s (“OCGMC”) motion to compel arbitration, which ruling is fully and expressly incorporated herein, the Dispute Resolution Agreement (the “Agreement”) is fully enforceable upon its terms. ROA 93 Ex. 1. The Agreement applies to “all disputes that might arise out of or be related in any way to [] employment by the Company.” ROA 93 Ex. 1 ¶ 1. The Company is defined as “Orange County Global Medical Center, Inc.” <i>Id.</i> The claims covered by the Agreement include those against the Company’s “parent, subsidiary, affiliated or client entities as well as against owners, directors, officers, managers, employees, agents, contractors, attorneys, benefit plan administrators, and insurers of the Company or of its parent, subsidiary, affiliated or client entities...[and] any person or entity [] allege[d] to be a joint employer with the Company.” <i>Id.</i> ¶ 3. The Agreement further provides for a class and PAGA waiver. Employees “waive any substantive or procedural rights that [they] may have to bring or participate in an action brought on a class or collective basis. If under applicable law a representative claim under the California Private Attorneys General Act (‘PAGA’) is found to be unwaivable and such an action is pursued in court, I and the Company agree that any such PAGA claim will be severed and stayed pending resolution of claims that are arbitrable.” <i>Id.</i> ¶ 4. Second, as reflected above, the Agreement expressly provides it applies to employment related disputes between the employee and, among others, OCGMC’s parent, subsidiary, or affiliated entities. ROA 93 Ex. 1 ¶ 3. As explained by Candace Burchell, Human Resources Manager for OCGMC and another
--	--	---

		subsidiary hospital, (1) defendant KPC Healthcare, Inc. is the parent company of OCGMC and (2) defendant KPC Global Medical Centers, Inc. (“KPCGMC”) is an affiliated entity of OCGMC. ROA 93 ¶¶ 2-3. Accordingly, pursuant to the express terms of the Agreement, it may be enforced by defendants KPC Healthcare, Inc. and KPCGMC (collectively, “KPC Defendants”) in this PAGA-only lawsuit asserting California Labor Code violations plaintiff has alleged to have suffered during his employment. ROA 2. Finding the Agreement’s express terms permit enforcement by non-signatory KPC Defendants , the court need not address defendants’ other theories of enforcement. However, even if the terms of the Agreement did not include entities such as KPC Defendants, because plaintiff alleges defendants were joint employers (ROA 2 ¶¶ 12, 27), does not differentiate among defendants, and alleges a single employment-related claim and joint liability against all defendants, equitable estoppel permits enforcement by non-signatory KPC Defendants. <i>Garcia v. Pexco, LLC</i> (2017) 11 Cal. App. 5th 782, 786 (doctrine applies where the claims are “based on the same facts and are inherently inseparable”). Plaintiff’s reliance on both <i>Mohamed v. Uber Technologies, Inc.</i> (2016) 848 F.3d 1201 and <i>Barsegian v. Kessler & Kessler</i> (2013) 215 Cal.App.4th 446 is misplaced as neither case involved an arbitration agreement, as here, that expressly applied to claims against parent, subsidiary, or affiliated entities. Additionally, <i>Barsegian</i> is further distinguishable as it involved an action brought against a vendor, an attorney, and a law firm alleging malpractice claims against the law firm and different claims against the other defendants arising out of a breach of a lease and alleged fraud. <i>Barsegian</i>, 215 Cal.App.4th at 449. Furthermore, <i>Barsegian</i> was readily distinguished in <i>Garcia v. Pexco, LLC</i> (2017) 11 Cal.App.5th 782, review denied (Aug. 23, 2017). In distinguishing <i>Barsegian</i>, the <i>Garcia</i> court noted that, as here, <i>Garcia</i>’s complaint alleged violations against the defendants as joint employers, referred to employers collectively as “defendants” without distinction, and alleged identical claims and conduct regarding unlawful and improper acts. <i>Id.</i> at 788. As the court in <i>Gonzalez v. Nowhere Beverly Hills LLC</i> (2024) 107 Cal.App.5th 111 held in a similar situation wherein plaintiff sued several related entities though employed by only one, “it would be unfair for [plaintiff] to group the...entities...for purposes of wage and hour liability as joint employers while at
--	--	---

	the same time denying the joint relationship in order to avoid arbitration.” <i>Id.</i> at 124. Accordingly, for the reasons above and the court’s ruling on OCGMC’s motion to compel arbitration, which is fully and expressly incorporated herein, the joinder is granted. <u>III. Joinder of Derek Drake and Peter Baronoff</u> Defendants Derek Drake and Peter Baronoff’s Joinder in defendant Orange County Global Medical Center, Inc.’s Motion to Compel Arbitration is GRANTED. Plaintiff Trevin Sofferman is ordered to arbitrate his individual claims. The case is otherwise STAYED pending completion of the arbitration. An ADR Review Hearing is scheduled for March 17, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 16 days before the hearing and shall request a continuance if arbitration is not yet complete. Procedural Issues It is common practice for attorneys to join in another party’s motion by simply filing a pleading captioned “joinder in motion of...”, stating that the joining party adopts the arguments and authorities contained in the joined motion. <i>Barak v. Quisenberry Law Firm</i> (2006) 135 Cal.App.4th 654, 661. Joinder is appropriate where the joinder seeks affirmative relief on behalf of the joining party and joins in the arguments made by the motion being joined. <i>Id.</i> Here, the joinder is appropriately in the form of a motion (ROA 99) and a memorandum that requests relief (ROA 79). Merits Plaintiff argues that joining defendants are precluded from enforcing the agreement because the arbitration agreement is unenforceable and moving parties may not enforce it as non-signatories and/or unnamed third parties. ROA 118. “Generally speaking, one must be a party to an arbitration agreement to be bound by it or invoke it.” <i>Molecular Analytical Systems v. CIPHERGEN Biosystems, Inc.</i> (2010) 186 Cal.App.4th 696, 706. However, there are exceptions to this general rule, which include: “(a) incorporation by reference;
--	---

		(b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary.” <i>Cohen v. TNP 2008 Participating Notes Program, LLC</i> (2019) 31 Cal.App.5th 840, 859. First, for the reasons explained in the court’s ruling on Orange County Global Medical Center, Inc.’s (“OCGMC”) motion to compel arbitration, which ruling is fully and expressly incorporated herein, the Dispute Resolution Agreement (the “Agreement”) is fully enforceable upon its terms. ROA 93 Ex. 1. The Agreement applies to “all disputes that might arise out of or be related in any way to [] employment by the Company.” ROA 93 Ex. 1 ¶ 1. The Company is defined as “Orange County Global Medical Center, Inc.” <i>Id.</i> The claims covered by the Agreement include those against the Company’s “parent, subsidiary, affiliated or client entities as well as against owners, directors, officers, managers, employees, agents, contractors, attorneys, benefit plan administrators, and insurers of the Company or of its parent, subsidiary, affiliated or client entities...[and] any person or entity [] allege[d] to be a joint employer with the Company.” <i>Id.</i> ¶ 3. The Agreement further provides for a class and PAGA waiver. Employees “waive any substantive or procedural rights that [they] may have to bring or participate in an action brought on a class or collective basis. If under applicable law a representative claim under the California Private Attorneys General Act (‘PAGA’) is found to be unwaivable and such an action is pursued in court, I and the Company agree that any such PAGA claim will be severed and stayed pending resolution of claims that are arbitrable.” <i>Id.</i> ¶ 4. Second, as reflected above, the Agreement expressly provides it applies to employment related disputes between the employee and, among others, the officers of OCGMC as well as the officers of OCGMC’s parent entity. ROA 93 Ex. 1 ¶ 3. As verified by Arlene Nielsen, OCGMC’s Human Resources Manager, (1) defendant KPC Healthcare, Inc. is the parent company of OCGMC; (2) defendant Peter Baronoff is KPC Healthcare, Inc.’s current Chief Executive Officer; and (3) defendant Derek Drake served as OCGMC’s Chief Operating Officer and, at the time of his departure in June 2025, Chief Executive Officer of OCGMC. ROA 130 ¶¶ 11-12. Accordingly, pursuant to the express terms of the Agreement, it may be enforced by defendants Peter Baronoff and Derek
--	--	--

		Drake in this PAGA-only lawsuit asserting California Labor Code violations plaintiff has alleged to have suffered during his employment. ROA 2. Finding the Agreement’s express terms permit enforcement by non-signatory defendants Derek Drake and Peter Baronoff, the court need not address defendants’ other theories of enforcement. However, even if the terms of the Agreement did not include officers such as Derek Drake and Peter Baronoff, because plaintiff alleges defendants were joint employers (ROA 2 ¶¶ 12, 27), does not differentiate among defendants, and alleges a single employment-related claim and joint liability against all defendants, equitable estoppel permits enforcement by non-signatory defendants Peter Baronoff and Derek Drake. <i>Garcia v. Pexco, LLC</i> (2017) 11 Cal. App. 5th 782, 786 (doctrine applies where the claims are “based on the same facts and are inherently inseparable”). Plaintiff’s reliance on both <i>Mohamed v. Uber Technologies, Inc.</i> (2016) 848 F.3d 1201 and <i>Barsegian v. Kessler & Kessler</i> (2013) 215 Cal.App.4th 446 is misplaced as neither case involved an arbitration agreement, as here, that expressly applied to claims against officers, directors, managers, employees, or agents. Additionally, <i>Barsegian</i> is further distinguishable as it involved an action brought against a vendor, an attorney, and a law firm alleging malpractice claims against the law firm and different claims against the other defendants arising out of a breach of a lease and alleged fraud. <i>Barsegian</i>, 215 Cal.App.4th at 449. Furthermore, <i>Barsegian</i> was readily distinguished in <i>Garcia v. Pexco, LLC</i> (2017) 11 Cal.App.5th 782, review denied (Aug. 23, 2017). In distinguishing <i>Barsegian</i>, the <i>Garcia</i> court noted that, as here, <i>Garcia</i>’s complaint alleged violations against the defendants as joint employers, referred to employers collectively as “defendants” without distinction, and alleged identical claims and conduct regarding unlawful and improper acts. <i>Id.</i> at 788. As the court in <i>Gonzalez v. Nowhere Beverly Hills LLC</i> (2024) 107 Cal.App.5th 111 held in a similar situation wherein plaintiff sued several related entities though employed by only one, “it would be unfair for [plaintiff] to group the...entities...for purposes of wage and hour liability as joint employers while at the same time denying the joint relationship in order to avoid arbitration.” <i>Id.</i> at 124.
--	--	--

		Accordingly, for the reasons above and the court’s ruling on OCGMC’s motion to compel arbitration, which is fully and expressly incorporated herein, the joinder is granted.
12	30-2025-01536371 Barnes vs. Hoskins Equipment LLC	Defendant Hoskins Equipment LLC’s motion to compel arbitration is GRANTED. Plaintiff Christopher M. Barnes Sr. is ordered to arbitrate his individual claims. The case is otherwise STAYED pending completion of the individual arbitration. An ADR Review Hearing is scheduled for February 25, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 16 days before the hearing and shall request a continuance if arbitration is not yet complete. Procedural Dispute Defendant filed its original motion on 03-06-2026. ROA 19. On 06-12-2026, defendant filed a “notice of errata” in which it is explained defendant inadvertently neglected to redact some of plaintiff’s medical information from the original filing. ROA 31. Defendant states the court advised counsel to obtain a stipulation from plaintiff to replace the original filing rather than withdraw it and file a new motion. ROA 31, 50. Plaintiff refused to stipulate. ROA 50. On 06-15-2026, the court entered an order replacing the originally filed motion. ROA 41. Plaintiff argues this process deprived him of proper notice and prejudiced his ability to oppose the motion. ROA 39. However, plaintiff fails to explain a basis for this claim. ROA 33, 39. Furthermore, the court observes the actual redactions to plaintiff’s employment documents are not relevant to any issue in dispute and, even if they were, plaintiff had timely possession of the unredacted versions. <i>Compare</i> ROA 33 at 1-2 <i>with</i> ROA 31 Exs. 1-3. Accordingly, plaintiff’s complaint of insufficient notice and/or prejudice (and the related request for sanctions) lacks merit. See C.C.P. §§ 128.5, 128.7 (sanctions request requires noticed motion). Formation of Agreement The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of